



CHAPTER xxxi.

An Act to provide for the transfer to the Rushden and Higham Ferrers District Gas Company of the undertaking of the Raunds Gas Light and Coke Company Limited to authorise the Rushden and Higham Ferrers District Gas Company to raise additional money to confer further powers upon and to change the name of that company and for other purposes. [12th July 1946.]

WHEREAS the Rushden and Higham Ferrers District Gas Company (in this Act called "the Company") were incorporated by the Rushden and Higham Ferrers District Gas Act 1899 (in this Act referred to as "the Act of 1899") and are by the Rushden and Higham Ferrers District Gas Act and Orders 1899 to 1922 empowered (inter alia) to supply gas within limits of supply which comprise parts of the administrative counties of Bedford and Northampton:

62 & 63
Vict. c. i.

And whereas the Raunds Gas Light and Coke Company Limited (in this Act called "the Raunds Company") are an existing company within the meaning of the Companies Act 1929 and are by the Raunds Gas Order 1906 confirmed by the Gas Orders Confirmation (No. 2) Act 1906 and by the Raunds Gas (Charges) Order 1921 empowered (inter alia) to supply gas within limits of supply which comprise the area described in Part I of the Second Schedule to this Act:

19 & 20
Geo. 5.
c. 23.
6 Edw. 7.
c. cxxxiii.

And whereas the limits of supply of the Company adjoin the limits of supply of the Raunds Company:

And whereas it is expedient that the undertaking of the Raunds Company should be amalgamated with that of the Company and the Company have agreed with the Raunds Company for the acquisition of their undertaking:

And whereas it is expedient that the undertaking of the Raunds Company should by this Act be transferred to and vested in the Company:

And whereas it is expedient that the limits within which the Company may supply gas should be extended to include in addition to the said area described in Part I of the Second Schedule certain other areas described in Part II of the said schedule:

And whereas it is expedient to change the name of the Company:

And whereas by the Act of 1899 and the Rushden and Higham Ferrers District Gas Order 1922 (in this Act called "the Order of 1922") the share capital of the Company is limited to fifty thousand pounds of which thirty-eight thousand three hundred pounds have been issued as follows:—

Authority.	Description of capital.	Rate of dividend.	Total paid up.	Premiums received less discounts.	Remain- ing to be issued.	Total amount authorised.
The Act of 1899	Original ordinary stock	10% subject to a sliding scale	£20,000	Nil	Nil	£20,000
The Act of 1899 and the Order of 1922	New ordinary stock	7% subject to a sliding scale	£12,000	£6,306	£11,694	£30,000

And whereas the Company have borrowed on mortgage and raised by the creation and issue of debenture stock sums amounting in the aggregate to fourteen thousand five hundred and fifty pounds:

And whereas it is expedient that the Company should be authorised to raise additional capital and to borrow further moneys for the purposes of their undertaking and that such other financial provisions should be made as are in this Act contained:

And whereas it is expedient that such further powers should be conferred upon the Company and that such other provisions should be made as are in this Act contained:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by

and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1.—(1) This Act may be cited as the Rushden District Gas Act 1946. Short and collective titles.

(2) The Rushden and Higham Ferrers District Gas Act and Orders 1899 to 1922 and this Act may be cited together as the Rushden District Gas Acts and Orders 1899 to 1946.

2. The following enactments so far as the same are applicable to the purposes and are not inconsistent with the provisions of the Rushden District Gas Acts and Orders 1899 to 1946 are hereby incorporated with this Act (namely):— Incorporation of Acts.

The Lands Clauses Acts except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking and except sections 127 to 132 of the Lands Clauses Consolidation Act 1845 relating to the sale of superfluous lands and except section 5 of the Lands Clauses Consolidation Acts Amendment Act 1860; 8 & 9 Vict. c. 18.
23 & 24 Vict. c. 106.

The Companies Clauses Consolidation Act 1845 except the provisions thereof with respect to the conversion of the borrowed money into capital; 8 & 9 Vict. c. 16.

The Companies Clauses Act 1863 as amended by subsequent Acts (except the provisions of Part II of that Act which limit the rate of dividend on preference capital): 26 & 27 Vict. c. 118.

Provided that in the application to the Company of Part III of the Companies Clauses Act 1863 section 22 of that Act shall be read as if the words “ and to the same amount as ” were omitted therefrom;

The Gasworks Clauses Act 1847;

The Gasworks Clauses Act 1871;

For the purposes of such incorporation the term “ undertakers ” shall mean the Company.

10 & 11
Vict. c. 15.
34 & 35
Vict. c. 41.

3. In this Act—

The several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith or by the Gas Undertakings Acts 1920 to 1934 shall have the same respective meanings unless there be something in the subject or context repugnant to such construction;

Interpretation.

- “ The Company ” means the Rushden and Higham Ferrers District Gas Company;
- “ The Act of 1899 ” means the Rushden and Higham Ferrers District Gas Act 1899;
- “ The Order of 1921 ” means the Rushden and Higham Ferrers District Gas (Charges) Order 1921 (S.R. & O. 1921 No. 1820);
- “ The Order of 1922 ” means the Rushden and Higham Ferrers District Gas Order 1922 (S.R. & O. 1922 No. 197);
- “ The directors ” means the directors of the Company;
- “ The undertaking ” means the undertaking of the Company for the time being authorised;
- “ The date of amalgamation ” means the first day of January nineteen hundred and forty-seven;
- “ The existing limits ” means the limits within which the Company are authorised to supply gas by the Act of 1899;
- “ The Raunds limits ” means the area described in Part I of the Second Schedule to this Act;
- “ The new limits ” means the areas described in Part II of the Second Schedule to this Act;
- “ The added limits ” means the areas described in the Second Schedule to this Act;
- “ The limits of supply ” means the limits within which the Company are for the time being authorised to supply gas;
- “ The inner area ” means the borough of Higham Ferrers and the urban district of Rushden as respectively constituted at the date of the passing of the Act of 1899;
- “ The Rushden outer area ” means so much of the existing limits as is not included within the inner area;
- “ The sliding scale capital ” means the original ordinary stock and the new ordinary stock of the Company issued immediately before the date of the passing of this Act and any ordinary share capital which may be issued after that date and on which the rate of dividend is subject to a sliding scale;
- “ The Rushden price ” means the price per therm charged for the time being by the Company for gas supplied to consumers within the inner area;

“ The authorised rate ” means in relation to each class of the sliding scale capital the rate per centum per annum authorised by the section of this Act of which the marginal note is “ Dividend on sliding scale capital dependent on price of gas ”;

“ The prescribed rate ” means the rate per centum per annum in any year or half-year payable under this Act on the ordinary stock “ A ” of the Company;

“ The Raunds Company ” means the Raunds Gas Light and Coke Company Limited;

“ The scheduled agreement ” means the agreement set out in the First Schedule to this Act;

“ The Raunds undertaking ” means the undertaking described in article 1 of the scheduled agreement;

“ Consumer ” means any consumer of gas supplied by the Company within the limits within which the Company are for the time being authorised to supply gas or any specified part (as the case may be);

“ Employee ” means any workman servant or officer of the Company other than a director;

“ Share capital ” includes stock not being debenture stock;

“ The Minister ” means the Minister of Fuel and Power.

4.—(1) The scheduled agreement is hereby confirmed and made binding on the Company and the Raunds Company and effect may and shall be given thereto accordingly.

Confirmation
of scheduled
agreement and
transfer of
Raunds
undertaking.

(2) On the date of amalgamation the Raunds undertaking as it exists on that date shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Company free from all mortgages debentures debenture stock or other similar charges (save as provided by the section of this Act of which the marginal note is “ As to mortgage bonds of Raunds Company ”) and become part of the undertaking.

5.—(1) As on the date of amalgamation there shall be created by virtue of this section and without any other requisite—

(a) fifteen thousand five hundred and forty-three pounds ordinary stock “ A ” of the Company;

(b) two thousand pounds five per centum redeemable preference stock of the Company;

Creation
and issue
of ordinary
and
preference
stock to
give effect to
scheduled
agreement.

or such less amounts as shall be necessary to give effect to the provisions of this Act with respect to the transfer of the Raunds undertaking.

(2) The said ordinary stock "A" and five per centum redeemable preference stock shall as soon as reasonably practicable after the date of amalgamation be issued by the Company to the shareholders of the Raunds Company in accordance with the provisions of the scheduled agreement and shall rank for dividend as from the date of amalgamation.

(3) (a) The said ordinary stock "A" created by virtue of this section shall form part of the ordinary share capital of the Company and save as is otherwise expressly provided by this Act the holders thereof respectively in proportion to the amount of their ordinary stock "A" shall after the date of amalgamation be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as the holders of any ordinary stock "A" which may be created by virtue of the section of this Act of which the marginal note is "Additional capital".

(b) (i) There shall be assigned to the said redeemable preference stock a preferential dividend at the rate of five per centum per annum and the provisions of sections 14 and 15 of the Companies Clauses Act 1863 shall apply in respect of such preference stock as if the same were preference stock issued under section 13 of that Act.

(ii) The Company may redeem the said redeemable preference stock on the first day of January nineteen hundred and seventy-five or at any time thereafter Provided that before exercising the said right of redemption the Company shall give to the holders of the said preference stock at least six months notice of their intention so to do expiring on the said first day of January nineteen hundred and seventy-five or the thirtieth day of June in that year or on the first day of January or the thirtieth day of June in any subsequent year.

(4) For the purpose of facilitating the distribution of the ordinary stock "A" and five per centum redeemable preference stock created by virtue of this section among the ordinary and preference shareholders of the Raunds Company the Raunds Company shall not less than fourteen days before the date of amalgamation deliver to the Company a statement containing the names and addresses of such shareholders and the amount of ordinary stock "A" or five per centum redeemable preference stock to which each shareholder is entitled under the provisions of the scheduled agreement and the Company shall issue and deliver as soon as reasonably practicable after the date of amalgamation to each such holder the appropriate certificates made out in his name:

Provided that in every case where under the foregoing provisions of this subsection a holder of original ordinary or additional ordinary shares of the Raunds Company would be

registered as the holder of any amount of ordinary stock "A" including any fractional part of one pound the Company in lieu of registering such holder and issuing a certificate made out in his name as holder of an amount of ordinary stock "A" including such fractional part shall pay to such holder a sum in cash equal to the value of such fractional part calculated in the case of the original ordinary shares of the Raunds Company at the rate of two pounds five shillings in respect of each one pound of the nominal value of such fractional part and in the case of the additional ordinary shares of the Raunds Company at the rate of one pound eleven shillings and sixpence in respect of each one pound of the nominal value of such fractional part and shall register such holder and issue a certificate made out in his name as holder of the amount of ordinary stock "A" excluding such fractional part.

(5) The Company may either cancel all or any of the ordinary stock "A" in respect of which payment in cash has been made under the provisions of subsection (4) of this section or issue the same to any willing purchaser thereof in amounts of one pound or multiples of one pound but not otherwise and any loss or expense which may be incurred in connection with such issue shall be borne by the Company:

Provided that any such issue of ordinary stock "A" shall be exempt from the provisions of the section of this Act of which the marginal note is "Sale of share capital by auction or tender."

(6) The powers of the Company remaining unexercised at the date of amalgamation of raising money by the creation and issue of further amounts of ordinary stock "A" or new ordinary shares or stock or preference shares or stock shall not be affected by the creation of ordinary stock "A" and redeemable preference stock by virtue of this section.

6. The mortgage bonds of the Raunds Company amounting to four thousand one hundred and fifty pounds and bearing interest at the rate of five per centum per annum or such of those mortgage bonds as shall be outstanding at the date of amalgamation shall as and from that date become and be mortgage bonds of the Company charged upon the undertaking in all respects as if those mortgage bonds had been granted by the Company on the date of amalgamation under the provisions of this Act and as if the Company had been a party thereto and had been named therein instead of the Raunds Company.

As to mortgage bonds of Raunds Company.

7. The directors of the Raunds Company may declare and pay at any time after the first day of December nineteen hundred and forty-six dividends (less income-tax) in respect of the year ending on the thirty-first day of that month at rates

Payment of dividends by Raunds Company for year 1946.

not exceeding five per centum on the preference shares of the Raunds Company ten per centum on the original ordinary shares and seven per centum on the additional ordinary shares of that company less any interim dividends paid in respect of that year.

Receipt for
consideration.

15 & 16
Geo. 5. c. 49.

Pending
actions not
to abate.

Contracts to be
binding.

8. The receipt in writing of two directors of the Raunds Company for any money or certificates paid or delivered to the Raunds Company on behalf of any shareholder of the Raunds Company shall effectually discharge the Company from the sum of money or amount of stock which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof and if from any cause the Company are unable to obtain any such receipt from the directors of the Raunds Company they may lodge the money or the stock to which the certificates relate in the Supreme Court in accordance with rules made under section 146 of the Supreme Court of Judicature (Consolidation) Act 1925 and a certificate given in accordance with those rules stating that such money or stock has been so lodged shall have the same effect for the purposes of this section as the receipt of two directors of the Raunds Company.

9. If at the date of amalgamation any action arbitration or proceeding or any cause of action arbitration or proceeding shall be pending or existing by or against or in favour of the Raunds Company the same shall not abate or be discontinued or be in anywise prejudicially affected by reason of the transfer to the Company of the Raunds undertaking or of anything in this Act but the same (save so far as it relates to any mortgages debentures debenture stock or other similar charge of the Raunds Company other than the mortgage debentures of the Raunds Company referred to in the section of this Act of which the marginal note is "As to mortgage bonds of Raunds Company" or to any contract agreement conveyance deed lease licence or other instrument not binding on the Company under the next succeeding section of this Act) may be continued prosecuted and enforced by against or in favour of the Company as and when it might have been continued prosecuted and enforced by against or in favour of the Raunds Company if this Act had not been passed but not further or otherwise.

10. Except as by this Act otherwise provided all contracts agreements conveyances deeds leases licences and other instruments affecting the Raunds Company and in force at the date of amalgamation (other than the scheduled agree-

ment) shall (subject as hereinafter provided) as from that date be as binding and of as full force and effect against or in favour of the Company and may be enforced against or in favour of the Company as fully and effectually as if instead of the Raunds Company the Company had been a party thereto or bound thereby or entitled to the benefit thereof and the Company shall as from the said date indemnify the Raunds Company from and against all actions claims demands losses damages costs and expenses whatsoever in respect thereof:

Provided that no contract agreement conveyance deed lease licence or other instrument made granted or entered into by the Raunds Company after the fifteenth day of November nineteen hundred and forty-five shall be binding on or of any force or effect against or in favour of the Company if made granted or entered into in contravention of the provisions of article 14 of the scheduled agreement.

11. All rents rates and charges and other sums and debts at the date of amalgamation due and payable or accruing due and payable to the Raunds Company shall be payable to and may be collected recovered and enforced by the Company in the same manner and with and by the same benefits and processes as those with and by which the Raunds Company might have collected recovered and enforced the same and shall belong to the Company for their own benefit.

Collection of
outstanding
debts.

12. All books and documents which if this Act had not been passed would have been evidence in respect of any matter for or against the Raunds Company shall on and after the date of amalgamation be admitted in evidence in respect of the same or the like matter for or against the Company.

Books &c.
to remain
evidence.

13. As on the date of amalgamation two of the directors of the Raunds Company to be nominated by the Raunds Company shall (if duly qualified as on that date) become directors of the Company.

As to
directors of
Raunds
Company.

14.—(1) The Company shall within three months of the date of amalgamation—

Compensation
to directors
and auditors
and engineer
and manager
of Raunds
Company.

(a) pay to the directors of the Raunds Company (other than the two directors referred to in the preceding section of this Act) in office as such immediately before the date of amalgamation and who were in office as such on the fifteenth day of November nineteen hundred and forty-five the sum of four hundred and twenty pounds in cash or a sum equal to seven times the amount received by them as directors of the Raunds Company in respect of the year ended the thirty-first day of December one thousand nine

hundred and forty-five whichever is the less to be divided between them in such proportions as they may agree or a majority of them may decide:

Provided that if at any time within seven years after the date of amalgamation any of the directors of the Raunds Company (other than as aforesaid) shall become a director of the Company he shall forthwith repay to the Company a sum bearing to the sum of money paid to him under this subsection as compensation for loss of office the same proportion as the period commencing on the date on which he is first appointed a director of the Company and terminating on the expiration of seven years from the date of amalgamation bears to the period of seven years;

- (b) to the persons in office as auditors of the Raunds Company immediately before the date of amalgamation and who were in office as such on the fifteenth day of November nineteen hundred and forty-five the sum of ninety-four pounds ten shillings in cash or a sum equal to three times the amount received by them as auditors of the Raunds Company in respect of the year ended the thirty-first day of December one thousand nine hundred and forty-five whichever is the less:

Provided that if any person to whom compensation would have been paid under this subsection dies before the date of amalgamation the amount of such compensation shall be reduced in the case of a director by an amount equal to seven times the amount received by him as fees as director of the Raunds Company in respect of the year ended the thirty-first day of December one thousand nine hundred and forty-five and in the case of an auditor by an amount equal to three times the amount received by him as auditor of the Raunds Company in respect of the year ended as aforesaid.

(2) The Company shall as from the date of amalgamation pay to Wilfred Bolton the engineer and manager of the Raunds Company if holding that office immediately before the date of amalgamation an annuity during his life at the rate of four hundred and twenty pounds payable by monthly instalments on the last day of each month.

As to
employees of
Raunds
Company.

15.—(1) The Company shall take over and employ as on and from the date of amalgamation such persons (other than the said Wilfred Bolton) who on that date are—

- (a) regular members of the staff of the Raunds Company; or

(b) regular employees of the Raunds Company;

and are willing to enter such service and to be employed at such place or places as the Company may think fit.

(2) The office staff of the Raunds Company shall be paid by the Company not less than the respective salaries in payment to them immediately before the date of amalgamation and the other regular employees of the Raunds Company shall be paid by the Company according to the class of work on which they are from time to time employed at rates of pay not being less than those respectively paid by the Raunds Company immediately before the date of amalgamation.

(3) No employee of the Raunds Company employed by the Company shall during a period of twelve months from the date of amalgamation be dismissed by the Company for any cause other than misconduct or inefficiency but after such period the Company shall be at liberty to dispense with the services of any such employee without assigning any reason therefor.

16. The terms and conditions relating to compensation payable to gasworkers for loss of employment (on the amalgamation of gas undertakings) recommended by the National Joint Industrial Council of the Gas Industry shall apply as between the Company and the gasworkers employed by the Raunds Company.

As to
compensation
to gas-
workers
employed by
Raunds
Company.

17.—(1) From and after the date of amalgamation the Raunds Company shall subsist only for the purpose of receiving and recovering the ordinary and preference stock and money to which the shareholders of the Raunds Company are entitled under this Act or the scheduled agreement and of distributing any dividends interest or other moneys to be distributed by them and for winding up their affairs and carrying into effect the purposes of this Act so far as they relate to the Raunds Company and the directors of that company who are in office at the date of amalgamation or the survivors of them shall continue in office without re-election and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section.

Winding up of
Raunds
Company.

(2) If the number of directors of the Raunds Company be reduced below two before the completion of the winding up of that company the continuing director shall from time to time choose any person who immediately prior to the date of amalgamation was a shareholder of the Raunds Company to fill the vacancy so caused.

(3) (a) As soon as practicable after the date of amalgamation the directors of the Raunds Company shall proceed to wind up the affairs of the Raunds Company and the property of that company other than that transferred to the Company under and by virtue of this Act and the scheduled agreement shall on the winding up thereof be applied in satisfaction of their liabilities (if any) other than those transferred to the Company under and by virtue of this Act and the scheduled agreement and subject to such application shall be distributed among the shareholders of the Raunds Company in accordance as nearly as maybe with the provisions of the scheduled agreement:

Provided that for the purposes of this subsection the several persons whose names appear in the books of the Raunds Company at the date of amalgamation to be the shareholders of that company shall unless the contrary be proved to the satisfaction of the directors of that company be considered to be shareholders of the Raunds Company and the receipt in writing of such persons or of their executors or administrators or of the guardian of the estate of any such person being a minor shall be an effectual discharge to the Raunds Company and the directors thereof.

(b) As soon as reasonably practicable after the date of amalgamation the directors of the Raunds Company shall publish in such manner as may be best adapted for informing persons affected notice that the affairs of the Raunds Company are about to be wound up and of the time within which any person claiming to be a creditor of that company must send to that company his name and address and the particulars of any debt or claim not transferred to the Company by virtue of this Act.

(4) Where the directors of the Raunds Company are for six months after the date of amalgamation unable after diligent inquiry to ascertain the person to whom any money ought to be paid or stock issued or who can give an effectual receipt therefor they may pay such money or stock into court as if it belonged to a trust of which they were trustees.

(5) Upon the purposes specified in this section being fulfilled and the affairs of the Raunds Company being by a resolution of the directors of that company declared to be wound up the Raunds Company shall be by virtue of this Act dissolved and shall thenceforth cease to exist.

(6) A printed copy of the resolution referred to in the immediately preceding subsection of this section shall be delivered to the Registrar of Companies within one month after the passing of such resolution.

18.—(1) Subject to the provisions of this Act any ordinary stock "A" or redeemable preference stock issued to the holders of ordinary or preference shares of the Raunds Company in pursuance of this Act shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in or subject to which the said shares of the Raunds Company were held immediately before the date of amalgamation and so as to give effect to and not to revoke any deed will or other instrument or testamentary or other disposition disposing of or affecting the shares and every such deed will instrument or disposition shall take effect with reference to the whole or a proportionate part (as the case may be) of the ordinary stock "A" or redeemable preference stock of the Company.

Substituted
securities
to be held in
same rights.

(2) Any bequest of or any covenant or provision of any deed will or other instrument relating to any specific number of or nominal amount of ordinary or preference shares in the capital of the Raunds Company shall be held to apply to the ordinary stock "A" or redeemable preference stock of the Company (as the case may be) or sum of cash which under the provisions of this Act are issued or (in the case of any sum of cash) paid in substitution for such specific number or nominal amount of shares in the capital of the Raunds Company.

(3) Trustees executors and administrators and all other persons in any representative or fiduciary capacity and persons under disability may and shall accept the ordinary stock "A" or redeemable preference stock of the Company (as the case may be) so issued to them or sums of cash so paid to them in pursuance of this Act for the ordinary or preference shares in the capital of the Raunds Company held by them and may hold dispose of or otherwise deal with such ordinary stock "A" or redeemable preference stock of the Company or sums of cash in all respects as they might have held disposed of or otherwise dealt with the ordinary or preference shares of the Raunds Company for which the same are substituted.

19.—(1) The Company shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur a like penalty. Every penalty under this section shall be recoverable summarily.

Copy of Act
to be
registered.

(2) There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1929 on registration of any document other than a memorandum of association or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

As to disposal
of profit and
loss account
of Raunds
Company.

20. The balance standing on the date of amalgamation to the credit of the profit and loss account of the Raunds Company in excess of the amount required to pay any dividends or interest which the Raunds Company are under the provisions of this Act entitled or required to pay in respect of the year ending the thirty-first day of December nineteen hundred and forty-six but have not paid shall be applied in such manner and for such purposes as the Company may determine and as may be approved by the auditor of the Company which approval shall be given in writing.

Change of
name of
Company.

21. The name of the Company shall be changed as on and from the date of amalgamation to "the Rushden District Gas Company" and by that name the Company shall have a common seal.

Extension
of limits of
supply.

22.—(1) As from the passing of this Act the limits within which the Company may supply gas shall extend to and include in addition to the existing limits the areas described in Part II of the Second Schedule to this Act:

Provided that the Company shall not supply gas in the parish of Denford in the rural district of Oundle and Thrapston and county of Northampton if and so long as the Thrapston Gas Company Limited are affording supplies of gas in that parish.

(2) On and after the date of amalgamation the limits within which the Company may supply gas shall be further extended to include in addition to the existing limits and the new limits the area described in Part I of the Second Schedule to this Act.

(3) Subject to the provisions of this Act the Company within the added limits shall have and may exercise all and the like powers rights privileges and authorities and be subject to all and the like duties and obligations as they now have and are subject to within the existing limits.

(4) On and after the date of amalgamation the Company may continue maintain and use any mains pipes and other works of the Raunds Company transferred to and vested in them by this Act and the provisions of the Rushden District

Gas Acts and Orders 1899 to 1946 shall apply to the said mains pipes and works in all respects as if the same had been laid down or constructed under the authority of this Act.

23. Subject to the provisions of this Act the Company may upon the lands described in the Third Schedule to this Act so long as they are possessed of the same maintain erect alter improve and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits within which the Company are for the time being authorised to supply gas and may also upon the said lands work up and convert the residual products arising directly or indirectly from the manufacture of gas by them or purchased by them under the powers conferred by section 4 of the Gas Undertakings Act 1929 and for this purpose the Company may purchase from any source and use such material as is required to work up and convert any such residual products.

Construction
of gasworks
&c.

19 & 20
Geo. 5. c. 24.

24. In addition to any other lands which the Company are by the Rushden District Gas Acts and Orders 1899 to 1946 authorised to acquire or hold for the purposes of the undertaking the Company may by agreement purchase take on lease or otherwise acquire and hold for those purposes any further lands not exceeding in the whole ten acres Provided that the Company shall not create or permit any nuisance on any such lands and that no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to the Act of 1899 and in the Third Schedule to this Act.

Power to
purchase
additional
lands.

25.—(1) As from the date of amalgamation the Raunds Gas Order 1906 and so much of the Gas Orders Confirmation (No. 2) Act 1906 as confirms that Order and the Raunds Gas (Charges) Order 1921 shall be repealed except the provisions (in this section referred to as "the excepted provisions") of the Raunds Gas Order 1906 which are set out in the Fourth Schedule to this Act and except so far as it may be necessary for the said Orders or either of them or any of the provisions thereof respectively to remain unrepealed for the purposes of the winding up of the Raunds Company.

Partial repeal
of enactments
relating to
Raunds
Company.

(2) The excepted provisions shall continue in force as respects the limits to which they particularly related and to the extent to which they were in force at the date of the commencement of the said Order of 1906 and the Company shall be subject to the obligations and may exercise the rights conferred by the excepted provisions in all respects as if the Company had been therein referred to instead of the Raunds Company.

As to
declared
calorific value
of gas.

26. Unless and until the Company otherwise declare in accordance with the provisions of section 8 (Variation of declared calorific value) of the Order of 1921 the declared calorific value of gas supplied by them—

- (a) in the Raunds limits shall continue to be the calorific value as declared by the Raunds Company immediately before the date of amalgamation; and
- (b) in the new limits shall be four hundred and fifty British thermal units.

Provisions
where meter
indices in
added gas
limits are read
before or after
date of
amalgamation.

27. Notwithstanding anything in this Act—

- (a) where the indices of the meter registering the supply of gas to any person within the Raunds limits are read for the quarter immediately preceding the date of amalgamation on or before that date all gas supplied to that person through such meter after such reading shall be deemed to have been supplied by the Company on or after that date;
- (b) where the indices of the meter registering the supply of gas to any person within the Raunds limits are read for the said quarter at any time after the date of amalgamation all gas supplied to that person through such meter up to the time of such reading shall be deemed to have been supplied before that date.

Differential
prices.

28.—(1) As from the passing of this Act the Company may charge for gas supplied by them to consumers—

- (a) in the Rushden outer area a price not exceeding the Rushden price by more than one decimal two pence per therm;
- (b) in the new limits a price not exceeding the Rushden price by more than four pence per therm.

(2) As from the date of amalgamation the Company may charge for gas supplied by them to consumers in the Raunds limits a price not exceeding the Rushden price by more than three decimal six pence per therm.

Additional
capital.

29.—(1) The Company may from time to time raise additional capital (in this Act referred to as "the additional capital") not exceeding in the whole one hundred thousand pounds by the creation and issue of further amounts of new ordinary stock ordinary stock "A" or preference stock or by the creation and issue of new ordinary shares or new preference shares or wholly or partly by one or more of those modes respectively.

(2) It shall not be lawful for the Company to create and issue under the powers of this section any greater nominal

amount of capital than shall be sufficient to produce including any premiums and allowing for any discounts which may be obtained or allowed on the issue thereof the sum of one hundred thousand pounds.

30. The additional capital created by the Company shall form part of the general capital of the Company and save as is otherwise expressly provided by this Act the holders thereof respectively in proportion to the amount of their shares or stock shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents in all respects as holders of other shares or stock of the Company of the same class or description.

Additional capital to be part of general capital.

31. The Company may, if they think fit raise by the creation and issue of preference shares or stock ranking *pari passu* with any preference shares or stock created pursuant to the provisions of this Act or any previous Act or Order all or any capital which they may from time to time by any subsequent Act or Order be authorised to raise by the creation and issue of preference shares or stock.

Provisions as to preference share capital.

32.—(1) Save as otherwise expressly provided by this Act and subject to the provisions of the Gas Undertakings Act 1934 all share capital issued by the Company after the passing of this Act shall be issued in accordance with the provisions of this section.

Sale of share capital by auction or tender.

24 & 25
Geo. 5. c. 28.

(2) All share capital so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the directors shall from time to time determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of the council of every borough and urban or rural district wholly or partly included within the limits of supply and to the secretary of the London Stock Exchange at least seven days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspaper or newspapers circulating within the limits of supply;

(b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Minister not less than twenty-four hours before but not to be opened until after the day of auction or last day for the reception of tenders as the case may be;

- (c) In the case of a sale by auction no lot offered for sale shall comprise share capital of greater nominal value than one hundred pounds and a bid (other than the first bid) shall not be recognised unless it is in advance of the last preceding bid;
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum except that the offer of any holder of share capital of the Company may be accepted in preference to the offer of the same sum by any person not such a holder and preference may in like manner be given to the offer of any employee or of any consumer;
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any share capital which has been so offered for sale and is not sold may be offered at the reserve price to the holders of share capital of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to employees and to consumers supplied by the Company in such proportions as the directors may think fit or to one or more of those classes of persons only:

Provided that in the case of an offer to holders of share capital if the aggregate amount of any class of share capital applied for shall exceed the amount thereof so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Minister stating the total amount of each class of share capital sold the total amount (if any) obtained as premium and the highest and lowest price obtained for each class of share capital.

Power to
borrow.

33.—(1) The Company may without further or other authority borrow on mortgage of the undertaking in respect of their share capital issued before the passing of this Act any sum or sums not exceeding in the whole (when added to any money borrowed on mortgage or raised by the creation and issue of debenture stock by the Company before the passing of this Act and outstanding at the date or respective dates on which the Company exercise the powers of this subsection) nineteen thousand one hundred and fifty-three pounds.

(2) As from the date of amalgamation the Company may subject to the provisions of this Act but without the certificate

of a justice borrow on mortgage of the undertaking in respect of the ordinary stock "A" and redeemable preference stock created by virtue of the section of this Act of which the marginal note is "Creation and issue of ordinary and preference stock to give effect to scheduled agreement" any sum or sums not exceeding in the whole (when added to any moneys secured by the mortgage bonds of the Company referred to in the section of this Act of which the marginal note is "As to mortgage bonds of Raunds Company" and outstanding at the date or respective dates on which the Company exercise the powers of this subsection) eight thousand seven hundred and seventy pounds.

(3) The Company may also subject to the provisions of this Act borrow on mortgage of the undertaking in respect of any share capital issued by them after the passing of this Act other than the ordinary stock "A" and redeemable preference stock created by virtue of the section of this Act of which the marginal note is "Creation of ordinary and preference stock to give effect to scheduled agreement" any sum or sums not exceeding in the whole one-half of the amount (including premiums and allowing for discounts) which at the time of borrowing has been raised by the issue of such share capital. But no sum shall be borrowed in respect of any such share capital until the Company have proved to a justice before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the amounts payable in respect of such share capital together with the premiums (if any) realised on the sale thereof has been fully paid up.

34. The Company may create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 as amended in its application to the Company but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under any previous Act or Order or this Act or any subsequent Act or Order shall subject to the provisions of any subsequent Act or Order rank *pari passu* (without respect to the dates of the securities or of the Act or Order or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Debenture stock.

Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock issued after the passing of this Act.

35. All money raised or to be raised by the Company on mortgage or by the creation and issue of debenture stock under the provisions of the Rushden and Higham Ferrers District Gas Act and Orders 1899 to 1922 or this Act shall have Priority of mortgages and debenture stock over other debts.

priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

Priority of
existing
mortgages.

36. All mortgages granted by the Company before the passing of this Act and subsisting at the passing of this Act shall during the continuance thereof and subject to the provisions of the Act or Order under which they were granted have priority over all mortgages granted in pursuance of this Act but nothing in this Act shall affect any priority of any debenture stock at any time created and issued by the Company.

Appointment
of receiver.

37. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth of the amount for the time being borrowed by the Company or ten thousand pounds whichever is the less.

Application
of money.

38.—(1) All money raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of share capital under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

(2) The Company may apply to any of the purposes of the undertaking to which capital is properly applicable any money which they have raised or are authorised to raise under the Rushden and Higham Ferrers District Gas Act and Orders 1899 to 1922.

Saving for
emergency
powers of
Treasury.

39.—(1) So long as this section continues in force it shall not be lawful without the consent of the Treasury to exercise the powers of borrowing or raising capital conferred by this Act.

54 & 55
Vict. c. 39.

(2) Section 113 of the Stamp Act 1891 (which in the case of any increase in the amount of nominal share capital of a company authorised by any Act charges stamp duty on a

statement of the amount of such increase to be delivered within one month from the passing of the Act) shall as amended by any subsequent enactment have effect as respects any share capital of the Company authorised to be raised by this Act as if this Act had been passed on the date when such consent as aforesaid is given as respects that capital or on the date when this section expires whichever first occurs.

(3) This section shall continue in force so long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939 or under that Act as extended by any subsequent enactment including the Supplies and Services (Transitional Powers) Act 1945. 2 & 3 Geo. 6.
c. 62.
9 Geo. 6. c. 10.

40. Except as expressly provided by the section of this Act of which the marginal note is "Dividend on sliding scale capital dependent on price of gas" the Company shall not in any year declare or make out of their profits any larger dividend— Limit of
dividend on
sliding scale
capital.

(a) on the original ordinary stock than at the rate of ten pounds in respect of every one hundred pounds of such stock; or

(b) on the new ordinary shares or stock than at the rate of seven pounds in respect of every one hundred pounds of such stock;

which rates shall be and are in this Act referred to as "the standard rates of dividend."

41. The Company shall not in any year declare or make out of their profits any larger dividend on their ordinary stock "A" than at the rate of five pounds in respect of every one hundred pounds of such stock which rate is in relation to the said stock referred to in this Act as the "maximum rate." Limit of
dividend on
ordinary
stock "A."

42. The Company shall not in any year declare or make out of their profits any larger dividend on their preference share capital than at the rate of six pounds in respect of every one hundred pounds of such capital. Limit of
dividend on
preference
share capital.

43. The price (in this Act referred to as "the standard price") to be charged by the Company to consumers within the inner area shall be thirteen decimal four pence per therm. Standard
price.

44.—(1) The Company may increase or reduce the price charged by them in respect of gas supplied to consumers above or below the standard prices: Dividend on
sliding scale
capital
dependent on
price of gas.

Provided that in any such case the dividend payable by the Company on the sliding scale capital in respect of any

year or half-year shall be at rates per centum per annum not exceeding the average of quarterly rates calculated as follows for each of the quarters in that year or half-year (that is to say):—

- (a) The quarterly rates for any quarter during any part of which the price charged by the Company in respect of gas shall have been above the standard price shall be rates less than the standard rates of dividend by five shillings on every one hundred pounds of original ordinary stock and by three shillings and sixpence on every one hundred pounds of new ordinary shares or stock in respect of each one-fifth of a penny or part thereof per therm by which the highest price charged by the Company in that quarter exceeds the standard price;
- (b) The quarterly rates for any quarter during the whole of which the price charged by the Company in respect of gas shall have been below the standard price shall be rates exceeding the standard rate of dividend by five shillings on every one hundred pounds of original ordinary stock and by three shillings and sixpence on every one hundred pounds of new ordinary shares or stock in respect of each one-fifth of a penny per therm by which the highest price charged by the Company in that quarter is less than the standard price.

(2) Any price for the time being charged in the Rushden outer area the Raunds limits or the new limits under the provisions of the section of this Act of which the marginal note is "Differential prices" in excess of the Rushden price shall not be taken into account in calculating the rates of dividend payable under subsection (1) of this section.

As to dividend
on ordinary
stock "A".

45. The ordinary stock "A" of the Company shall rank for dividend *pari passu* with the sliding scale capital up to and until the maximum rate of dividend has been reached and save as is otherwise provided by the section of this Act of which the marginal note is "As to proportionate reduction of dividends on ordinary share capital" the Company shall not be entitled in any year or half-year to reduce below the maximum rate the rate of dividend payable on the said ordinary stock "A".

As to propor-
tionate
reduction of
dividends on
ordinary share
capital.

46.—(1) If in any year or half-year the funds of the Company applicable to the payment of dividend on the sliding scale capital are insufficient to pay the full amount at the authorised rate on each class of such capital a proportionate reduction shall be made in each class.

(2) If in any year or half-year the authorised rates of dividend on the sliding scale capital are less than the standard rates a proportionate reduction shall be made in the rate of dividend payable on the ordinary stock "A" of the Company.

47. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference share capital of the Company and the dividend at the authorised rates on the sliding scale capital and at the prescribed rate on the ordinary stock "A" of the Company for that year the excess shall be left at the credit of the profit and loss (net revenue) account of the undertaking and be carried forward to the next following year: Application of profits in excess of authorised and prescribed dividends.

Provided that it shall not be lawful for the Company to carry forward at the end of any year to the credit of the said account any sum exceeding the total of the following amounts (that is to say):—

- (a) The amount required by the Company for paying any dividend or interest which the Company are entitled or required to pay but have not paid in respect of that year;
- (b) An amount equal to the total sum which the Company will be lawfully entitled to distribute as dividends on their share capital in respect of the next following year having regard in the case of the sliding scale capital to the price charged by them for gas at the commencement of that year; and
- (c) An amount equal to the total sum which the Company will be required to pay during the next following year as interest in respect of that year on any mortgages or debenture stock.

48.—(1) Where in any year or half-year the dividends payable on the sliding scale capital of the Company shall exceed the standard rates of dividend by reason of the price charged by the Company in respect of gas in such year or half-year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend and to the payment of dividend on the ordinary stock "A" of the Company the Company may in such year or half-year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company may be invested in any investments in which trustees are authorised by law to invest money or in such other manner as shall be authorised by a resolution of the Company and the dividends and interest arising from such investments may also be invested in the same or the like investments in order that the same may accumulate at compound interest and the Power to create a reserve fund.

fund so formed shall be called " the reserve fund " and shall be applicable to the payment of dividend or to such other purpose as the directors of the Company may determine. Save as in this Act provided no sums shall in any year or half-year be carried by the Company to any reserve fund.

(2) Any moneys standing to the credit of the reserve fund of the Raunds Company on the date of amalgamation shall forthwith be carried to the reserve fund authorised by this section.

Renewal fund. 49.—(1) The directors may if they think fit in any year appropriate money out of the revenue of the Company as part of the expenditure on revenue account to a fund to be called " the renewal fund " and the annual contributions to and the amount of that fund shall be limited in accordance with the provisions of section 5 of the Gas Undertakings Act 1934.

(2) The renewal fund shall be applicable only to meet expenses requisite for the maintenance and renewal of plant and works (other than expenses incurred in the replacement or removal of plant or works) and shall be so applied from time to time for the purpose of equalising as far as may be the annual charge to revenue in respect of such expenses.

Receipt of minors. 50. If any money is payable to a mortgagee or debenture stockholder being a minor the receipt of his guardian shall be a sufficient discharge to the Company.

Substitution of card index for shareholders' address book. 51. Notwithstanding anything in section 10 of the Companies Clauses Consolidation Act 1845 the Company may substitute for the shareholders' address book provided under that section a card or other index (of a type to be approved by the auditors of the Company) containing the names and addresses of the several shareholders of the Company and that section in its application to the Company shall be read and have effect accordingly.

Closing of transfer books. 52.—(1) The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend on any share capital of the Company and they may close the registers of transfers of mortgages and debenture stock for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable and the directors may in any such case fix a day for the closing of any register which they are authorised to close under the provisions of this section.

(2) Seven days' notice of the closing of any such register shall be given by advertisement in a newspaper published and circulating in the limits of supply and any transfer of

share capital or mortgages or debenture stock made or lodged for registration during the time when the register of transfers relating to such stock or security is closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend or the payment of any such interest as the case may be.

53.—(1) If and so long as the ordinary meetings of the Company shall be held once only in each year (any such meeting being in this section referred to as the “annual general meeting”)—

Half-yearly
dividends and
annual
accounts.

(a) the directors may on or after the thirtieth day of June in any year without the sanction or direction of a general meeting declare and pay out of the funds of the Company applicable to dividend a dividend in respect of the half-year ended on the said thirtieth day of June on any class of share capital of the Company at such rate per centum per annum as the directors may think fit but no such rate shall—

(i) as respects the original ordinary stock or any new ordinary shares or stock be greater than the rate of dividend in respect of that half-year payable in accordance with the provisions of the section of this Act of which the marginal note is “Dividend on sliding scale capital dependent on price of gas”; or

(ii) as respects any ordinary stock “A” be greater than the prescribed rate; or

(iii) as respects any preference shares or stock be greater than the preferential annual rate of dividend assigned to such shares or stock;

(b) section 116 of the Companies Clauses Consolidation Act 1845 shall in its relation to the Company be read and have effect as if the words “preceding year” were substituted therein for the words “preceding half-year.”

(2) When in respect of any such half-year as aforesaid the directors exercise the powers conferred by paragraph (a) of subsection (1) of this section the only dividend (if any) to be declared at the next following annual general meeting on any class of share capital of the Company in relation to which such powers were exercised shall be a dividend in respect of the half-year ending next before the date of such annual general meeting at such rate per centum per annum as the Company may approve not exceeding the rate of dividend requisite to enable the Company to pay in the case of the

original ordinary stock or any new ordinary shares or stock or any ordinary stock " A " the balance of the dividend which can lawfully be paid in respect of such shares or stock and in the case of any preference shares or stock the balance of the dividend payable in respect of the year in which such half-year occurs at the preferential annual rate assigned thereto and section 120 of the Companies Clauses Consolidation Act 1845 shall in its application to the Company be read and have effect accordingly.

Voting rights.

54.—(1) At all general meetings of the Company (whether ordinary or extraordinary) every holder of original ordinary stock new ordinary shares or stock or ordinary stock " A " shall be entitled on a show of hands to one vote and on a poll to one vote in respect of the nominal amount of such share capital held by him up to fifty pounds and an additional vote for each fifty pounds of such share capital beyond the first fifty pounds up to one thousand pounds and an additional vote for each one hundred pounds of such share capital beyond the first one thousand pounds.

(2) Where a corporation being a holder of share capital to which voting rights are attached is present by a proxy who is not a shareholder in the Company such proxy shall be entitled to vote for such corporation on a show of hands.

(3) No person shall be entitled to vote in respect of any share capital to which a preferential dividend shall be assigned.

Recreation
ground for
employees.

55. The Company may provide maintain and equip grounds for games sports or recreation for the use and benefit of the employees and may by agreement acquire or take on lease and hold for that purpose any lands in addition to the lands which they are or may be authorised to acquire and hold for the purposes of the undertaking. Provided that the total quantity of the lands which the Company may hold for the purposes of this section shall not at any one time exceed ten acres in the aggregate.

Power to
sell and
lease lands.

56. Notwithstanding anything to the contrary in the Lands Clauses Acts or any Act or Order relating to the Company the Company may sell and dispose of or may let on lease for such periods as they think fit any lands for the time being belonging to the Company which have been acquired by agreement and which may not at the time be required for the purposes of the undertaking and any such sale or disposal or lease may be to such person for such consideration and subject to such reservations stipulations restrictions and provisions and generally upon such terms and conditions as the Company may think fit.

57.—(1) The Company may for the purposes of supply- As to streets
ing gas to the owner or occupier of any premises within the outside limits
limits of supply exercise with respect to any street or part of of supply.
a street outside those limits the like powers of breaking up the
same for the purpose of laying maintaining inspecting repair-
ing and renewing pipes as are exerciseable by them with
respect to streets within the limits of supply subject never-
theless to the observance of the conditions imposed on the
exercise of those powers therein.

(2) Nothing in this section shall entitle or require the Com-
pany to supply gas for any premises outside the limits of
supply.

(3) In this section the word " street " includes any square
court or alley highway lane road thoroughfare or public
passage or place.

58. The Company may within the limits of supply lay Power to
down and repair take up relay or renew mains pipes and lay pipes for
culverts for the purpose of procuring conducting or disposing ancillary
of any oil or other materials used by them in or resulting purposes.
from the manufacture of gas or any residual products thereof
or for any purpose connected with the undertaking and the
provisions of the Gasworks Clauses Act 1847 with respect to
the breaking up of streets for the purpose of laying pipes
and for the protection of pipes when laid so far as they are
applicable to the purposes of this section shall extend and
apply mutatis mutandis to and for the purposes thereof:

Provided that no such main pipe or culvert shall be laid
down in any street unless the consent in writing of the persons
having control or management of the street or being respon-
sible for the repair thereof shall first have been obtained but
such consent shall not be unreasonably withheld and any
difference arising between the Company and such persons
shall be determined by arbitration the arbitrator to be
appointed (failing agreement between the parties) by the
Minister on the application of either party after notice in
writing to the other of them and the decision of such arbitrator
shall be final and binding Subject as aforesaid the Arbitra-
tion Acts 1889 to 1934 or any statutory modification or re-
enactment thereof for the time being in force shall apply to
any such arbitration.

59. If any person supplied with gas by the Company im- For preven-
properly uses or deals with the same so as to interfere with tion of
the efficient supply of gas by the Company to any consumer improper use
the Company may if they think fit cease to supply gas to such of gas.
person.

Inspection and
testing of
meters.

60.—(1) The Company's inspectors or servants shall at all reasonable times have access to and be at liberty to inspect take off remove test repair and replace meters which are the property of the Company and meanwhile to fix a substituted meter on the premises such inspection taking off removal testing repairing and replacing to be done at the expense of the Company.

10 & 11
Geo. 5. c. 28.

(2) If any meter which is the property of the Company shall have been tested at the request of a consumer in manner provided by regulations made under section 12 of the Gas Regulation Act 1920 the expense of changing and testing such meter shall be borne by the consumer unless the meter shall have been found to register erroneously to a degree exceeding the degree permissible under the said regulations in which event such expense shall be borne by the Company.

Recovery of
sums due for
fittings &c.

61. If the Company commence proceedings against any consumer for the summary recovery of any sum due for a supply of gas any other sum due or payable to the Company by the same consumer in respect of the sale or hire of any apparatus or fittings supplied or provided by them for or in connection with the consumption or use of gas or in respect of the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily as a civil debt together with the sum due for the supply of gas Provided that the sum so included as aforesaid shall not exceed twenty pounds in any one summons.

For protection
of London
Midland and
Scottish
Railway
Company.

62. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as "the railway company") shall unless otherwise agreed in writing between the Company and the railway company be in force and have effect with respect to the exercise of the powers of this Act within the limits of supply:—

(1) In laying down or executing or (except in the case of emergency) in effecting the repair renewal or alteration of any mains pipes or other works of the Company (hereinafter in this section referred to as "apparatus") upon across over under or in any way affecting the railways or works of the railway company (hereinafter in this section referred to as "the railway") the same shall be done by the Company under the superintendence (if given) and to the reasonable satisfaction of the engineer of the railway company and (except in the case of repairs)

according to plans sections and particulars to be previously submitted to and reasonably approved by him or in the case of difference settled by arbitration:

Provided that if the said engineer shall not express his disapproval of such plans sections and particulars with the grounds of such disapproval within twenty-one days from the submission thereof he shall be deemed to have approved thereof:

- (2) In the execution of any works the Company shall cause as little injury as may be to the railway and shall not cause any interruption to the passage or conduct of traffic over the railway or unreasonably obstruct or interfere with the access to any station thereon:
- (3) The Company shall restore and make good to the reasonable satisfaction of the said engineer the railway and the roads which the railway company are liable to maintain over any bridge or approach so far as the same may be disturbed or interfered with by the execution of such works:
- (4) If any injury to or interruption of traffic on any railway constructed or authorised to be constructed at the date of the passing of this Act shall arise from the execution of any works or if any leakage or failure of any apparatus (not being due to any act or default of the railway company or their agents or employees) shall cause any injury to or interruption of traffic on the railway the Company shall make compensation in respect thereof to the railway company:
- (5) (a) If the railway company at any time hereafter intend in pursuance of any powers existing at the date of the passing of this Act to construct any additional or other works upon their lands or railways or to extend alter or repair the railway (hereinafter in this section referred to as "the railway works") upon across over or under which any apparatus shall have been constructed or laid the railway company shall give notice in writing to the Company of their intention accompanied by plans sections and particulars of the railway works so far as they affect such apparatus and the railway company may in such notice propose that the apparatus shall be diverted altered in position or depth or otherwise dealt with (which works are hereinafter in this section referred to as "diversion") as shown on and described in the said plans sections and particulars;
(b) Within twenty-eight days after the receipt of any notice under paragraph (a) of this subsection

the Company may by counter-notice in writing given to the railway company—

(i) dispute the necessity for any diversion of apparatus proposed by the railway company; or

(ii) require diversion of the apparatus where such diversion is not proposed by the railway company or diversion of the apparatus in a manner different from any diversion proposed by the railway company in accordance with plans sections and particulars to accompany the counter-notice.

In the absence of any such counter-notice the Company shall be deemed to have approved any diversion of apparatus proposed by the railway company in the notice given to them under paragraph (a) of this subsection;

(c) Where any such counter-notice as is referred to in paragraph (b) of this subsection is given by the Company the railway company shall not commence to execute the railway works so far as they would affect the apparatus until it has been agreed between the Company and the railway company or determined by arbitration whether the diversion of apparatus referred to in such counter-notice is or is not necessary and in what manner any necessary diversion of the apparatus is to be carried out:

- (6) If it shall be agreed between the Company and the railway company or (in case of difference) determined by arbitration that diversion of the apparatus is necessary the Company may and (if so required by the railway company) shall carry out the diversion in such manner as shall be so agreed or determined and the railway company shall repay to the Company the amount of the costs and expenses reasonably incurred by the Company in or in connection with the diversion (which costs and expenses are hereinafter in this section referred to as "the said expenses") Provided that if in carrying out the diversion the Company substitute new apparatus for apparatus laid down before the commencement of the period of seven years and six months immediately preceding the date on which the diversion is commenced and the date at which the apparatus would have required to be renewed is thereby deferred the Company shall themselves bear such proportion of the said expenses as represents the estimated saving of expense to the Company

resulting from such deferment Provided also that if the said expenses are enhanced by—

(i) the substitution for the existing apparatus of improved apparatus or apparatus of greater dimensions (other than length) than those of the existing apparatus; or

(ii) the laying or placing of apparatus at a depth greater than the depth of the existing apparatus (unless such greater depth is reasonably necessary in order to protect the apparatus from damage by reason of the execution of the railway works);

the Company shall themselves bear such proportion of the said expenses as represents the amount of such enhancement except to the extent of any part of such amount which may be borne by the Company under the preceding proviso to this subsection Provided further that where—

(a) the railway company within twenty-eight days after the receipt by them of plans sections and particulars submitted under subsection (1) of this section shall have given notice in writing to the Company of their intention of executing the railway works in accordance with plans sections and particulars accompanying such notice; and

(b) the execution by the railway company of the railway works in accordance with such plans sections and particulars shall have been commenced within two years from the date of such notice;

no part of the said expenses shall be repayable by the railway company to the Company:

- (7) If any subsidence in the property of the railway company shall occur and such subsidence is not caused by the act or default of the railway company their servants or agents the Company shall pay to the railway company the reasonable costs incurred by the railway company of supporting diverting or otherwise dealing with such apparatus consequent upon the restoration of the property of the railway company to its original level after such subsidence:
- (8) Nothing in this section shall prejudice alter or affect the rights of the railway company or the Company under any agreement between them relating to the mains pipes or other works of the Company and

where the provisions of such agreement are inconsistent with the provisions of this section the provisions of the said agreement shall apply:

- (9) Any dispute or difference which may arise between the railway company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by an arbitrator to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

Saving rights
of Duchy of
Lancaster.

63. Nothing contained in this Act shall extend or operate or authorise the Company to take use enter upon or in any manner interfere with any land soil water or any manorial rights or any other rights of whatsoever description belonging to His Majesty in right of His Duchy of Lancaster without the consent in writing of the chancellor for the time being of the said duchy first had and obtained (which consent the said chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by His Majesty His heirs or successors in right of His said duchy.

Saving for
town and
country
planning.
22 & 23 Geo. 5.
c. 48.
6 & 7 Geo. 6.
c. 2.
7 & 8 Geo. 6.
c. 47.

64. The provisions of the Town and Country Planning Acts 1932 and 1943 and the Town and Country Planning Act 1944 and of any order scheme or regulation made under those Acts or under any enactment repealed by those Acts so far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development.

Repeal.

65. The following provisions of the undermentioned Act and Orders are hereby repealed:—

The Act of 1899—

- Section 24 (Profits of the Company limited);
- Section 25 (Dividends on different classes of shares or stock to be paid proportionately);
- Section 32 (Application of excess of profits over authorised rate of dividend);
- Section 33 (Power to create a reserve fund out of dividends in excess of standard rates of dividend and application thereof);
- Section 34 (Receipt of guardian &c. to be sufficient discharge);

- Section 35 (Power to borrow);
- Section 36 (Priority of existing mortgages);
- Section 37 (For appointment of a receiver);
- Section 38 (Debenture stock);
- Section 43 (Voting);
- Section 51 (Interim dividend);
- Section 52 (Closing of transfer books previous to declaring interim dividend);
- Section 55 (For the protection of the London and North Western Railway Company);
- Section 56 (Power to purchase lands by agreement);
- Section 61 (Dividend dependent on price charged);
- Section 69 (Power to refuse to supply persons in debt for other property);
- Section 70 (Gas consumers to give notice to Company before removing);
- Section 73 (Provisions as to labouring class houses);
- Section 74 (Power to apply for Provisional Order to supply electricity):

The Order of 1921—

- Section 3 (Standard prices);
- Section 4 (Modification of sliding scale):

The Order of 1922—

- Section 5 (Power to borrow);
- Section 6 (Limit of dividend);
- Section 8 (New shares or stock to be sold by auction or tender);
- Section 9 (Debenture stock).

66. All the costs charges and expenses preliminary to and Costs of Act.
of and incidental to the preparing applying for obtaining and
passing of this Act or otherwise in relation thereto shall be
paid by the Company and may in whole or in part be defrayed
out of revenue.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

AN AGREEMENT made the fifteenth day of November one thousand nine hundred and forty-five between THE RAUNDS GAS LIGHT AND COKE COMPANY LIMITED (hereinafter referred to as "the Raunds Company") of the one part and THE RUSHDEN AND HIGHAM FERRERS DISTRICT GAS COMPANY (hereinafter referred to as "the Rushden Company") of the other part.

WHEREAS the Raunds Company are an existing company within the meaning of the Companies Act 1929 and have power under and by virtue of the Raunds Gas Order 1906 confirmed by the Gas Orders Confirmation (No. 2) Act 1906 (6 Edw. 7. c. cxxxiii) and by the Raunds Gas Order 1921 (S.R. & O. 1921 No. 1793) to supply gas within limits of supply which comprise the urban district of Raunds in the county of Northampton:

And whereas the Rushden Company were incorporated by the Rushden Gas Act 1899 (62 & 63 Vict. c. i) and have power under and by virtue of the Rushden Gas Act and Orders 1899 to 1922 to supply gas within limits of supply which comprise the borough of Higham Ferrers the urban district of Rushden and the parish of Chelveston in the rural district of Oundle (except so much of that parish as was supplied with gas at the passing of the said Act of 1899 by the Irthlingborough Gas Company Limited) and the parish of Newton Bromshold in the rural district of Wellingborough all in the county of Northampton and the parishes of Wymington and Podington and so much of the parish of Melchbourne and Yeldon as before the first day of April one thousand nine hundred and thirty-four constituted the parish of Yeldon all in the rural district and county of Bedford:

And whereas the authorised capital of the Raunds Company is ten thousand pounds of which nine thousand four hundred and ninety pounds has been issued as follows:—

Description of capital.	Dividend authorised.	Amount.
555 original ordinary shares of £10 each.	10% maximum dividend	£5,550
194 additional ordinary shares of £10 each.	7% maximum dividend	£1,940
200 preference shares of £10 each.	5%	£2,000
		£9,490

And whereas the Raunds Company have created and issued debenture bonds amounting to four thousand one hundred and fifty pounds and bearing interest at the rate of five per centum per annum:

And whereas subject as hereinafter mentioned the Raunds Company and the Rushden Company have agreed upon the terms and subject to the conditions hereinafter contained that the undertaking of the Raunds Company shall be amalgamated with that of the Rushden Company.

Now therefore it is hereby agreed as follows.

1. In this agreement unless the context otherwise requires—

“ the Raunds undertaking ” means the undertaking of the Raunds Company as existing at the date of amalgamation including—

(a) the freehold hereditaments described in the schedule hereto and all other lands and all buildings works plant mains pipes apparatus equipment stocks and stores all cash in hand and moneys due to the Raunds Company and all other real and personal property assets and effects of whatsoever nature belonging to the Raunds Company;

(b) such benefit of and liability under all contracts and agreements relating to the undertaking as the Raunds Company are entitled or subject to; and

(c) all rights easements powers liberties privileges and authorities whatsoever of the Raunds Company or to which the Raunds Company are entitled at law or in equity;

“ the confirming enactment ” means the Act to follow the Bill to be promoted or as the case may be the Special Order to be applied for under the Gas Undertakings Acts 1920 to 1934 by the Rushden Company for giving effect to this agreement;

“ the date of amalgamation ” means the first day of January one thousand nine hundred and forty-seven or such other date as may be prescribed by the confirming enactment.

2. It is hereby agreed between the Raunds Company and the Rushden Company that subject as hereinafter provided the whole of the undertaking of the Raunds Company as it exists as a going concern on the date of amalgamation shall be amalgamated with the undertaking of the Rushden Company and that the last-mentioned Company shall as from the date of amalgamation be known as “ the Rushden District Gas Company.”

3. As part of the consideration for the said amalgamation the Rushden Company shall distribute—

(a) to the holders of the original ordinary shares of the Raunds Company ordinary stock (credited as fully paid up) of the Rushden Company having a maximum dividend of five per centum per annum according to the number of shares held by them respectively (that is to say)—

for each original ordinary share in the capital of the Raunds Company twenty-two pounds ten shillings of ordinary stock of the Rushden Company having a maximum dividend of five per centum per annum;

1ST SCH.
—cont.

(b) to the holders of the additional ordinary shares of the Raunds Company ordinary stock (credited as fully paid up) of the Rushden Company having a maximum dividend of five per centum per annum according to the number of shares held by them respectively (that is to say)—

for each additional ordinary share in the capital of the Raunds Company fifteen pounds fifteen shillings of ordinary stock of the Rushden Company having a maximum dividend of five per centum per annum;

(c) to the holders of the preference shares of the Raunds Company five per cent redeemable preference stock (credited as fully paid up) of the Rushden Company redeemable at the option of the Rushden Company on or after the first day of January one thousand nine hundred and seventy-five according to the number of shares held by them respectively (that is to say)—

for each preference share of the Raunds Company ten pounds of five per cent redeemable preference stock of the Rushden Company.

The said ordinary and preference stock of the Rushden Company shall bear dividend as from the date of amalgamation.

4. The Rushden Company shall not be entitled to reduce below the maximum rate of five per centum per annum the rate of dividend payable in any year or half-year on the ordinary stock to be issued in pursuance of the last foregoing article except in any year or half-year in which the authorised rates of dividend on the original ordinary stock and the additional ordinary stock of the Rushden Company existing at the date of this agreement are less than the standard rates attached thereto when they shall make a proportionate reduction in the dividend on the ordinary stock to be issued as aforesaid.

5. As further part of the consideration for the said amalgamation the Rushden Company shall take over the said recited 5 per cent. debenture bonds of the Raunds Company and the same shall as from the date of amalgamation become and be debenture bonds of the Rushden Company in all respects as if they had been granted by the Rushden Company as if the Rushden Company had been a party thereto and had been named therein instead of the Raunds Company. The interest on the said debenture bonds shall as from the date of amalgamation rank *pari passu* with the interest on the debenture stock of the Rushden Company created under the authority of the Rushden and Higham Ferrers District Gas Act 1899.

6. Notwithstanding the amalgamation hereby agreed to be made the Raunds Company may pay in respect of any period ending on the date of amalgamation for which no dividends have previously been paid dividends at such rates as they may determine not exceeding in the case of the preference shares five per centum per annum in the case of the original ordinary shares ten per centum per annum and in the case of the additional ordinary shares seven per centum per annum.

7. For the purpose of facilitating the distribution of the ordinary and preference stock of the Rushden Company forming part of the consideration under this agreement among the holders of ordinary and preference shares of the Raunds Company the Raunds Company shall not less than fourteen days before the date of amalgamation deliver to the Rushden Company a statement containing the names and addresses of such holders and the amount of such ordinary or preference stock of the Rushden Company of which each such holder is to be registered as the holder and the Rushden Company shall issue and deliver as soon as reasonably practicable after the date of amalgamation to each such holder the appropriate certificate or certificates made out in his name. Provided that in every case where under the foregoing provisions of this article a holder of original ordinary or additional ordinary shares of the Raunds Company would be registered as the holder of any amount of ordinary stock having a maximum dividend of five per centum per annum including any fractional part of one pound the Rushden Company in lieu of registering such holder and issuing a certificate made out in his name as holder of an amount of ordinary stock having a maximum dividend of five per centum per annum including such fractional part shall pay to such holder as soon as aforesaid in the case of a holder of the original ordinary shares of the Raunds Company a sum in cash calculated at the rate of two pounds five shillings in respect of each one pound of the nominal value of such fractional part and in the case of a holder of additional ordinary shares of the Raunds Company a sum in cash calculated at the rate of one pound eleven shillings and sixpence in respect of each one pound of the nominal value of such fractional part and shall register such holder and issue a certificate made out in his name as holder of the amount of stock excluding such fractional part.

8. As remaining part of the consideration for the said amalgamation the Rushden Company shall take over pay discharge and indemnify the Raunds Company against all the debts and liabilities of the Raunds Company which are outstanding on the date of amalgamation and the Rushden Company shall also observe and perform all the obligations attaching to the Raunds Company at the said date and shall indemnify the Raunds Company against any claim or demand in respect thereof.

9. The transfer and amalgamation shall be completed on the date of amalgamation at the offices of the Rushden Company and on that date the Raunds undertaking shall be transferred to and amalgamated with the undertaking of the Rushden Company.

10. On the date of amalgamation or as soon thereafter as is reasonably practicable the Raunds Company and all other necessary parties shall execute and do all such assurances and things for vesting the said undertaking in the Rushden Company and giving to the Rushden Company the full benefit of this agreement as shall be reasonably required by the Rushden Company.

11. The Raunds Company shall on the date of amalgamation or as soon thereafter as is reasonably practicable deliver to the Rushden Company all deeds agreements books plans reports descriptions of

1ST SCH.
—cont.

work vouchers letters and other records of the business and proceedings of the Raunds Company and originals of all other documents drafts or writings in the possession or under the control of the Raunds Company or their servants relating to the Raunds undertaking as the Rushden Company may require.

12. The title to the respective hereditaments set out in the schedule hereto shall commence as in the said schedule is mentioned.

13. For the purpose of determining the ad valorem duty (if any) payable in respect of the freehold property comprised in the transfer and amalgamation the consideration for the said freehold property shall be taken to be nine thousand five hundred and seventy pounds.

14. As from the date of this agreement until the date of amalgamation or until the determination of this agreement the Raunds Company (except with the consent in writing of the Rushden Company) shall not—

- (a) enter into any contract or incur any liability other than in respect of legal and accountancy charges incidental to the carrying into effect of this agreement and other than in the ordinary course of carrying on the business and undertaking of the Raunds Company or make any unnecessary or exceptional expenditure or make any payment to any director officer or servant of the Raunds Company beyond their usual remuneration and emoluments at the rates operative at the date of this agreement (unless in pursuance of a national award);
- (b) increase the existing staff or number of employees of the Raunds Company;
- (c) borrow upon mortgage or charge any of the assets of the Raunds Company or create or issue any capital or renew any existing mortgage debenture.

15. From and after the date of this agreement the Raunds Company shall in its general policy and particularly in regard to the making of contracts the expenditure of money on capital account and the incurring of liabilities act in consultation with the directors of the Rushden Company.

16. As from the date of this agreement the Rushden Company and any officer thereof or engineer or accountant nominated by the Rushden Company for the purpose shall have access at all reasonable times to the works offices books accounts records maps and documents of the Raunds Company who shall give to them or him such information and assistance from time to time as may be reasonably required.

17. As from the date of amalgamation two of the directors of the Raunds Company shall become and be directors of the Rushden Company.

18.—(1) In addition to the consideration for the said amalgamation the Rushden Company shall pay as compensation for loss of office to—

- (a) the directors of the Raunds Company holding office at the date of this agreement who shall be in office as such

directors immediately before the date of amalgamation and have not become directors of the Rushden Company the sum of four hundred and twenty pounds in cash such sum to be divided between them as they or the majority of them may decide;

(b) the persons holding office at the date of this agreement as auditors of the Raunds Company if they shall also hold such office immediately before the date of amalgamation the sum of ninety-four pounds ten shillings in cash;

(c) to Wilfred Bolton the engineer and manager of the Raunds Company if holding that office immediately before the date of amalgamation an annuity during his life of four hundred and twenty pounds.

(2) Payment of the sums due under paragraphs (a) and (b) of this Article shall be made within three months after the date of amalgamation.

19. The Rushden Company shall take into their employment such of the employees of the Raunds Company as shall be willing to enter such service and to be employed at such place as the Rushden Company think fit. The office staff of the Raunds Company shall be paid by the Rushden Company not less than their respective salaries on the date of amalgamation and the workmen of the Raunds Company shall be paid by the Rushden Company according to the class of work on which they shall from time to time be employed not less than the respective rates of wages paid by the Raunds Company on the date of amalgamation. Any workman or other employees of the Raunds Company employed by the Rushden Company shall not during a period of twelve months from the date of amalgamation be dismissed by the Rushden Company for any other cause than misconduct or inefficiency but at any time after the expiration of that period the Rushden Company shall be at liberty to dispense with the services of any such workmen without assigning any reason therefor.

20. The Rushden Company shall at their own expense as soon as may be after the date of this agreement take the usual and proper steps to promote a Bill in Parliament or to apply for a Special Order under the Gas Undertakings Acts 1920 to 1934 and use their best endeavours to obtain an Act or Order containing such clauses as may be necessary—

- (1) To carry this agreement into effect;
- (2) To authorise the Rushden Company to utilise for gasworks purposes the present site of the Raunds gasworks;
- (3) To extend the limits of supply of the Rushden Company so as to include (inter alia) the whole of the statutory limits of supply of the Raunds Company (hereinafter referred to as "the added area");
- (4) To authorise the Rushden Company to charge in the added area a satisfactory differential or additional price for the gas sold in such area as compared with the present limits of supply of the Rushden Company but not exceeding by more than 3.6 pence per therm the price for the time being charged within the existing limits of supply;

1ST SCH.
—cont.

- (5) To declare if thought desirable a different calorific value for the added area from that declared for their existing limits of supply or any part thereof;
- (6) To make such provision as may be deemed necessary or desirable for the dissolution of the Raunds Company.

21. The Rushden Company shall be at liberty to include in their Bill or Order all such provisions as they may deem necessary or expedient for purposes other than the said amalgamation.

22. The Raunds Company shall at the request and cost of the Rushden Company aid and assist the Rushden Company in promoting the Bill or applying for the Special Order and so far as the Rushden Company may reasonably require shall by their officers and servants support such promotion or application by evidence but nothing in this article shall debar the Raunds Company from opposing such promotion or application so far as may be necessary to secure clauses and amendments reasonably necessary for giving effect on behalf of the Raunds Company to the provisions in their interest in this agreement contained. The Rushden Company shall at all times furnish to the Raunds Company full information and particulars concerning the progress of the Bill or Order.

23.—(1) This agreement is subject to the confirming enactment passing into law and to such alterations as Parliament or the Minister of Fuel and Power may think fit to make therein.

(2) This agreement is also conditional on the requisite approval of the proprietors of the Raunds Company and of the Rushden Company being obtained to the promotion of or application for the Bill or Order. The directors of the Raunds Company and of the Rushden Company shall respectively use their best endeavours to obtain such approval.

(3) If the confirming enactment is not passed into law or if Parliament or the Minister of Fuel and Power seek to make any material alteration in the terms of this agreement and such alteration is not agreed to by the directors of the Rushden Company or is reasonably objected to by the directors of the Raunds Company or if the promotion of or application for the Bill or Order is not approved as aforesaid by the proprietors of the Rushden Company or of the Raunds Company then and in any of those events either of the parties hereto may by notice in writing to the other (to be sent by registered post addressed to the secretary of such other company) withdraw from this agreement and thereupon the same shall become void and of no effect. Provided that—

- (a) if any question shall arise between the Rushden Company and the Raunds Company as to the reasonableness of any objection by the directors of the Raunds Company to any alteration made by Parliament or the Minister of Fuel and Power in the terms of this agreement such difference shall be referred to and determined by an arbitrator to be agreed upon between the said companies or (failing such agreement)

to be appointed on the application of either party by the president for the time being of the Institution of Gas Engineers;

1ST SCH.
—cont.

- (b) the decision of such arbitrator shall be final and binding;
- (c) if the arbitrator determines that the objection is unreasonable any notice given by either company under this clause and founded on the objection shall be null and void.

As witness the common seals of the parties hereto the day and year first before written.

The SCHEDULE hereinbefore referred to.

The freehold properties in the urban district of Raunds and in the county of Northampton situate fronting or adjoining Grove Street and Wellington Street and delineated and coloured pink on the plan hereto annexed and comprised in the following particulars.

1. All that piece or parcel of land situate in the parish and urban district of Raunds in the county of Northampton containing by admeasurement five thousand square yards or thereabouts on the southern side of Grove Street and Wellington Street and bounded on or towards the north partly by Grove Street and partly by Wellington Street on or towards the east by the piece or parcel of land hereinafter described on or towards the south by land belonging or reputed to belong to Alfred Groome and on or towards the west by land belonging or reputed to belong to Leonard Boyfield Together with the gasworks buildings and erections erected or standing on the said land or any part thereof All which land is included in the schedule to the Raunds Gas Order 1906.

2. All that piece or parcel of land situate in the said parish of Raunds containing by admeasurement one thousand three hundred square yards or thereabouts adjoining the piece or parcel of land hereinbefore described and bounded on or towards the north by Grove Street on or towards the east by cottages and the gardens belonging thereto belonging or reputed to belong to Walter Adams on or towards the south by land belonging or reputed to belong to Alfred Groome and on or towards the west by the piece or parcel of land hereinbefore described Together with the messuage or tenement erected thereon.

The titles to the several premises hereinbefore described shall commence—

- (a) as to the property firstly described with the Raunds Gas Order 1906;
- (b) as to the property secondly described with an indenture of conveyance dated the thirtieth day of September one thousand nine hundred and seven made between Enos Smith of Raunds in the county of Northampton builder of the first part William Fellowes Corby of Raunds aforesaid rate-

1ST SCH.
—cont.

collector of the second part the Raunds Gas Light and Coke Company Limited of the third part and Fred Adams of Stanwick in the said county of the fourth part.

The common seal of the RAUNDS GAS LIGHT AND COKE COMPANY LIMITED was hereunto affixed in the presence of—

L.S.

J. C. HORRELL
Chairman of directors.

H. W. LAWRENCE
Director.

WILFRED BOLTON
Secretary.

The common seal of the RUSHDEN AND HIGHAM FERRERS DISTRICT GAS COMPANY was hereunto affixed in the presence of—

L.S.

J. ROE
Chairman of directors.

J. W. RADBURNE
Vice-chairman of directors.

J. F. B. CRADDICK
Acting secretary.

SECOND SCHEDULE.

THE ADDED LIMITS.

PART I—The Raunds limits.

The urban district of Raunds in the county of Northampton.

PART II—The new limits.

The parishes of Denford Hargrave and Ringstead in the rural district of Oundle and Thrapston and county of Northampton.

The parishes of Covington Catworth Kimbolton and Tilbrook in the rural district of St. Neots and the parish of Bythorn and Keyston in the rural district of Huntingdon all in the county of Huntingdon.

THIRD SCHEDULE.

LANDS FOR THE MANUFACTURE AND STORAGE OF GAS &C.

A piece of land in the urban district of Raunds and in the county of Northampton situate fronting or adjoining Grove Street and Wellington Street and containing by admeasurement five thousand square yards or thereabouts on the southern side of Grove Street and Wellington Street and bounded on or towards the north partly by Grove Street and partly by Wellington Street on or towards the east by the piece of land secondly described in the schedule to the scheduled agreement on or towards the south by land belonging or reputed to belong to Alfred Groome and on or towards the west by land belonging or reputed to belong to Leonard Boyfield.

FOURTH SCHEDULE.

PROVISIONS OF THE RAUNDS GAS ORDER 1906 CONFIRMED BY THE GAS
ORDERS CONFIRMATION (No. 2) ACT 1906 SAVED FROM REPEAL.

20. If any difference arise between the undertakers and any railway Differences with
canal or other company whose lands or works the undertakers have railway and
power to cross under the authority of this Order as to the mode of other com-
laying down repairing altering or enlarging their mains pipes or other panies.
works in over or upon such lands or works or the facilities to be
afforded for the same such difference shall be settled by an engineer or
other fit person to be appointed by the Board of Trade at the request
of either party.

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and
King's Printer of Acts of Parliament

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(P. 4943)